

AGREEMENT

By and between the
BINGHAMTON CITY SCHOOL DISTRICT

And

CSEA, Local 1000 AFSCME, AFL-CIO

Aides and Monitors Unit 6157-02

Broome County Educational Local 866

July 1, 2022 - June 30, 2025

TABLE OF CONTENTS

Agreement.....	3
Article 1	
Preamble.....	3
Article 2	
Duration of Recognition.....	3
Article 3	
Management Rights.....	4
Article 4	
Compensation.....	5
Article 5	
Lateral Transfers.....	7
Article 6	
Personal Business Leaves and Holidays.....	7
Article 7	
Sickness and Injuries.....	8
Article 8	
Leaves of Absence.....	10
Article 9	
Health, Dental and Pension Insurance.....	10
Article 10	
Labor Management Committee.....	17
Article 11	
Grievances.....	18
Article 12	
Employment Security.....	19
Article 13	
Effective Date.....	20
Appendix.....	21

THIS AGREEMENT made this fifth day of May, 2016, by and between THE CIVIL SERVICE EMPLOYEES ASSOCIATION, INC. LOCAL 1000, AMERICAN FEDERATION OF STATE, COUNTY, AND MUNICIPAL EMPLOYEES, AFL-CIO, BINGHAMTON CITY SCHOOL DISTRICT UNIT OF AIDES AND MONITORS WHO WORK FOUR HOURS OR MORE PER DAY, BROOME COUNTY EDUCATIONAL LOCAL 866, UNIT 6157-02, herein referred to as the "Association" and THE CITY SCHOOL DISTRICT OF THE CITY OF BINGHAMTON, NEW YORK, herein referred to as the "School District" and,

WHEREAS, both parties desire to enter into this Agreement pursuant to Article 14 of the Civil Service Law,

NOW THEREFORE, the Association and the School District mutually agree as follows:

ARTICLE 1 - PREAMBLE

Both parties to this agreement affirm that public employment is to be regarded as a career, and that as such, the terms, conditions shall be of the caliber to attract and maintain in employment with the school district the best personnel available. Both parties further affirm that each non-teaching school district employee, in whatever capacity he or she serves the school district, shall at all times be a dedicated, courteous, and efficient representative of public employment, who fully realizes that he or she is under the constant scrutiny of the public at large and that he or she is performing an essential public service.

ARTICLE 2 - DURATION OF RECOGNITION.

Section I.

In accord with Section 208 of the Civil Service Law, the Association shall have unchallenged representation status for the period permitted by law on the date of execution of this Agreement.

Section 2:

The Board of Education recognizes the Binghamton City School District Unit 6157-02 of the Civil Service Employees Association, Inc. for the purpose of negotiation collectively in the determination of, and administration of, grievances arising under the terms and conditions of employment of the non-teaching employees of the Binghamton City School District. Titles covered under this agreement are Aides, Monitors, School Monitor Coordinators, Handicapped Student Aides, and Library Aides who work four hours or more per day.

Section 3:

The School District through the Business Office of the School District shall deduct from the wages of school non-teaching employees and remit to the Civil Service Employees Association, Inc., Box 7125 Capital Station, Albany, New York 12224, regular membership dues for each of the non-teaching employees who have signed

dues-deduction authorization cards authorizing such deductions. A copy of the check, together with a list of the names constituting each remittance shall be furnished to the President of the Association. Deductions and remittances shall also be made for duly authorized Civil Service Employees Association group health and accident and/or group life insurance premiums. No solicitation of insurance by representatives of any insurance company or member of the Association will be permitted on School District premises during working hours.

The Association will provide the school district with legal counsel mutually selected by the parties for any litigation which arises as a result of the Agency Fee language contained in Article 2, Section 3 of this Agreement. Where a refund of dues is directed by a court or appropriate administrative agency, through no fault of the school district, the Association shall wholly and solely be responsible for any refund together with interest.

Section 2: No Strike Clause

The Association hereby affirms that it will not assert the right to strike against the School District or to assist or participate in any strike against any government or public employee (as defined in Section 201, subdivision 7 of the Civil Service Law), or to impose any obligation to conduct, assist or participate in such a strike.

Section 3: Extended Work Year

The District shall in its discretion have the right to require employees to work up to and including 204 days. Any time worked beyond the 200-day calendar shall be paid at the employee's hourly rate. Attendance at October Superintendent's conference days is mandatory. Members will attend an additional six (6) hours of Professional Learning at faculty meetings or during the March Superintendent's Conference day during the course of the school year at the discretion of the district.

The Union shall have the right and opportunity to hold an orientation session with all newly hired employees. This orientation session shall be for the purposes of explaining the new employee's contractual rights and introducing them to the union. The orientation will be held within thirty (3) days of the employee's hire date and shall be during the working hours at a time agreed by the employee's immediate supervisor, not to exceed thirty (30) minutes in duration.

ARTICLE 3 – MANAGEMENT RIGHTS

Section 1:

Except as validly limited by express provisions of this Agreement, the District reserves the right to unilaterally determine the standards of selection for employment; to direct and assign its employees; to take disciplinary action; to

relieve its employees from duty because of lack of work or other legitimate reasons; to maintain the efficiency of governmental operations; to determine the methods, means, and personnel by which its operations are to be conducted; to determine the content of job classifications; to allocate positions to pay grades; to take all necessary actions to carry out its mission in emergencies; to exercise complete control and discretion over its organization and facilities, methods, means, and technology of performing its work.

Section 4: Layoff Procedures

- a) Layoff and Notification: It is understood and agreed that in the event the District plans to lay off employees in the bargaining unit for any reason, the District will notify the Union in writing of its plans at least one month prior to the effective date that such action is proposed to commence. Upon notification to the Union of such impending plans, a meeting shall be arranged between the parties within five workdays of such notification to review the anticipated layoff and the effect it will have on employees within the bargaining unit.
- b) Such layoff shall be accomplished by laying off, first, all employees with temporary appointments. If further layoffs are necessary, then employees shall be laid off in the inverse order of their seniority. Seniority shall be defined as time served as a teacher aide and/or monitor on contract for four hours or more per day.
 - 1. Where there is a demonstration that an employee lacks the competencies to perform the duties and responsibilities of the position as determined by the District in its sole discretion, the District retains the right to retain an employee with less seniority while laying off a more senior employee.
- c) Any employee to be laid off shall receive no less than 14 calendar days written notice, with a copy to the Union President.

- d) Laid off employees shall be placed on a recall list in order of their seniority. If the District establishes, funds and decides to refill the previous positions that were abolished for a period of two (2) years, then the employees laid off shall be offered positions if the following conditions are met:
1. The person is qualified to perform the work, as determined by the District in its sole discretion.
 2. The person must accept the District's offer of re-employment (sent to their last known address) within three (3) weeks, and start work within the same three (3) weeks, or the person shall be considered resigned.

ARTICLE 4 - COMPENSATION:

The starting base salary shall be \$14.20 or minimum wage, whichever is higher effective 7/1/2022.*

2022-2023

Teacher aides and monitors who were employed in the 2021-2022 school year and who return shall receive an increase in base salary of \$1,800 or prorated if part-time effective July 1, 2022.

2023-2024

Teacher aides and monitors who were employed in the 2022-2023 school year and who return shall receive an increase in base salary of \$1800 or prorated if part-time effective July 1, 2023.

2024-2025

Teacher aides and monitors who were employed in the 2023-2024 school year and who return shall receive an increase in base salary of \$1800 or prorated if part-time effective July 1, 2023.

*Adjustment will be made to accommodate minimum wage standards for those individuals whose hourly wage falls below the standard.

LONGEVITY

An employee who begins work prior to the first workday in February shall be eligible to receive their longevity payment in September of the year in which they would reach the appropriate anniversary date. An employee who starts working after the first workday in February shall receive their longevity payment the September following the appropriate anniversary date.

As of July 1, 2022 the following will be longevity payments:

LONGEVITY PAYMENTS:	5 th YEAR \$600.00 ADDED TO BASE
	10 th YEAR \$600.00 ADDED TO BASE
	15 th YEAR \$700.00 ADDED TO BASE
	20 th YEAR \$700.00 ADDED TO BASE
	25 th YEAR \$500.00 ADDED TO BASE
	30 th YEAR \$500.00 ADDED TO BASE

Payroll Option

Ten-month employees shall be given the option of receiving their salary in either twenty-two or twenty-six payroll checks. The employee shall, by written exercise of said option, notify the District of the choice on or before May 1st of each year which election shall be for the ensuing year and shall not be subject to change.

Extra Work - Supervision

Aides or monitors who are hired for extra work to provide supervision before school, as a monitor or after school (beyond a 6 hr. workday) as a lunch monitor will be paid for hours worked at their contractual hourly rate of pay plus \$0.50 cents per hour.

Direct Deposit

The District will provide direct payroll deposit to a single financial institution affiliated with ACH (Automated Clearing House) for all members of the bargaining unit. Paper checks will no longer be issued.

Job Postings

Copies of job postings for teacher aide and monitor positions shall be forwarded to the Association President.

ARTICLE 5 - LATERAL TRANSFERS

Seniority in the respective job classifications will be considered as a factor in determining the lateral transfers.

ARTICLE 6 - PERSONAL BUSINESS LEAVES and HOLIDAYS

Section 1: Each employee shall be allowed four (4) days per year for personal business (which days are to be credited according to the past practices of the District, i.e., four (4) days credited when employed and thereafter, at the commencement of each fiscal year), which days shall at the end of the fiscal year, if not used, be converted to sick leave days, but they shall not be accumulative as personal business days and use of a day for personal business shall be subject to approval of the Superintendent of Schools or his/her designee when they are to be taken for other than the following reasons:

1. Illness in immediate* family
2. Death in immediate* family - up to 3 days (in addition to 2 bereavement days provided by district)
3. Funerals - 1 day each
4. Family or close relatives' wedding; 1 day each
5. College graduation of member of family -1 day each
6. Bank Business - (such as settling of mortgages or loans) 1 day

7. Court attendance where personally involved
8. Use of these four days to extend sick leave when leave has been used up due to personal illness
9. Employee moving - 1 day

*Immediate family is defined to include: spouse, children, parents, step-parents or stepchildren, grandparents, brothers, sisters, mother-in-law, father-in-law, sister-in-law, brother-in-law, aunts and uncles, nieces, nephews, grandchildren, son-in-law, daughter-in-law and a person who regularly resides in the employee's home and occupies a close relationship to the employee.

Section 2: Each employee shall be allowed two bereavement days for death in the immediate family as immediate family is above defined.

Section 3: If an employee is called for jury duty, then the employee will be paid his/her normal rate of pay for time spent on jury duty, less the amount paid by the Court as compensation for jury duty.

Section 4: All employees covered by this Agreement shall work the days called for by the adopted school calendar and as determined by this school district.

Section 5: In the event that an employee is absent from work on the day before a holiday, he shall not be penalized holiday pay for the reason that he was absent on the day prior to the holiday, as long as the absence is for reasons allowed under the agreement.

ARTICLE 7 - SICKNESS AND INJURIES (SICK LEAVE, ETC.)

- Section 1: An employee shall accrue one (1) day a month sick leave and it shall be permissible to accumulate his/her sick leave days and no limit will be imposed. If an employee goes unpaid for more than half the work days in a month, they shall not be entitled to an accrued sick day for that month. After an employee has completed two consecutive full fiscal years with the District, or being a ten-month employee, has completed two full consecutive ten-month periods within two fiscal years, such leave for the next ensuing fiscal or ten-month period will be credited at the beginning of such period.
- Section 2: In the event that an employee has no personal business days left, the Superintendent of Schools, upon prior approval, or upon written request from the employee, may grant permission to use accumulated sick leave for death or illness in the immediate family (as defined in Article 6, Section 1).
- Section 3: In case a non-teaching person is quarantined in his place of residence because of illness or contagious disease caused by contact with a student or teacher in the school, accumulative sick leave shall not be charged and salary deductions shall not be made for the duration of the quarantine or such other period as the School Doctor shall certify as requisite or prudent.
- Section 4: The School District will reimburse employees for loss or damage to personal property such as eyeglasses, dentures, hearing aids, while the employee is acting in the discharge of his/her duties within the scope of his/her employment. Terms and conditions of payment will be subject to approval of the Superintendent of Schools or his designee.
- Section 5: Attendance Incentive
- Aides or Monitors who use no sick day during the school year will be paid five hundred dollars (\$500.00) the following December.
- Aides or Monitors who use one (1) sick day during the school year will be paid four hundred dollars (\$400.00) the following December.
- Aides or Monitors who use two (2) sick days during the school year will be paid three hundred dollars (\$300.00) the following December.
- Bereavement days, personal business days, days for Jury Duty and days contributed to sick bank do not count against perfect attendance.
- Section 6: After having served two (2) consecutive years in full time service to the district, Aides or Monitors members may participate in a Sick Leave Bank provided they contribute sick days to the sick bank prior to September 1 5th of each year and midyear hires within two months of hire date. An aide or monitor may draw from the Sick Leave Bank provided:

1. They have exhausted their own sick days and personal days. A sick leave applicant who has exhausted all their sick and personal days may request from the Superintendent of Schools additional leave to conduct personal business that may come up prior to the end of the school year. Such requests shall not be unreasonably denied.
2. They have furnished a physician's statement in writing demonstrating the need for additional sick leave and,
3. The Sick Leave Bank Screening Committee approves the application.

Any aide or monitor employee participating in the Sick Leave Bank will be limited to withdrawing from the bank up to a total of sixty (60) days in succession. When an illness extends beyond sixty days, the employee may reapply to the Screening Committee for further coverage. There will be a maximum of 180 days available over a two (2) year period.

The Sick Leave Bank Screening Committee shall consist of three District appointees and two Aides or Monitor appointees. Decisions of said committee shall not be subject to the grievance procedure.

The District shall contribute one hundred (100) days to the bank for the 2022-2023, 2023-2024, 2024-2025 school year and will replenish all part of these days whenever the bargaining unit members' contributed days have been exhausted.

The bargaining unit shall not be allowed to annually contribute more days than a number derived by multiplying the number of bargaining unit members by two.

In the event of emergencies which require additional sick days beyond those granted in this contract, the Board may, upon application of the employee, grant sick leave extension at full pay.

Donation of a day to Sick Bank does not exclude members from receiving Perfect Attendance.

Section 7: In the event of emergencies or extended illness which requires additional sick days beyond those granted in this contract, the Board of Education may, upon written application of the non-teaching employee, grant a sick leave extension, not to exceed 80 working days at full pay. This privilege is specifically restricted and limited to Civil Service Employees who have completed three or more consecutive years of service in the City School District. For the purposes of the foregoing paragraph, a year's service is an employee's normal work year, so that a ten-month employee completes a year of service in ten months and a twelve-month employee, in twelve months. An unpaid leave of absence is not to be construed as a break in service, but

the period of the leave is not credited towards the three-year qualification period. A voluntary termination is a break in service and upon rehiring; an employee must re-qualify with three years of consecutive service. A layoff is not a break in service provided the employee is rehired within a year, although no credit for the time furloughed will be given. A disciplinary discharge resulting in termination breaks service, but a suspension is not a break in service, although the period of suspension is not credited. Discretionary leave means it shall be granted at the sole discretion of the Board of Education.

ARTICLE 8 - LEAVES OF ABSENCE

Section 1: A short term leave of absence without pay of up to ten (10) days may be applied for by an employee. The leave shall be granted or denied in the sole discretion of the District. The employee must apply for said leave at least ten (10) days in advance unless a bona fide, good faith, emergency reason exists for not having applied upon ten-(10) days notice. A person granted a short-term leave of absence shall not be allowed another short-term leave of absence for the following two (2) academic years.

Section 2: A long term leave of absence without pay if not less than ten (10) days or more than one (1) year may be applied for by an employee. The leave shall be granted or denied in the sole discretion of the District. The employee must apply for said leave at least thirty (30) days in advance unless a bona fide, good faith, emergency reason exists for not having applied upon thirty (30) days notice.

ARTICLE 9 - HEALTH, DENTAL and PENSION INSURANCE

Those hired after 7/1/2013 will only have the option of the PPO plan for their insurance coverage.

Health Benefits

Section 1: Effective as soon as possible after July 1, 2013, the District shall only make available to all new unit members one health insurance plan — Excellus Blue PPO-H.

Prescription medications shall carry the following co-pays:

	All Plans Effective July 1, 2022
Tier 1	Five dollars \$5.00
Tier 2	Fifteen dollars \$15.00
Tier 3	Thirty dollars \$30.00

Effective after July 1, 2010, the District shall make available to all unit members two (2) health insurance plans.

Plan I: Blue Cross Blue Shield of Central New York Region wide Plan Option II

Section 2: This health insurance plan is the indemnity plan offered since January 1, 1999. There are to be no changes to existing language for this plan.

Plan II: Blue Cross Blue Shield of Central New York Region wide Blue PPO-Plan H (see attached Appendix).

Any employee who is eligible for membership in the Blue Cross/Blue Shield Region Wide Plan, Option 2, may become a member of said plan and the insurance premiums of the persons currently employed by the District and eligible dependents shall be paid by the School District. Any teacher aides and monitors hired after March 5, 1985, shall contribute twelve percent (12%) of the annual cost.

The District shall have the right to change the health insurance plan administrator provided that plan benefits are comparable Section to that provided by the Blue Cross/Blue Shield Region wide 3: Plan, Option 2 health insurance.

In order to assist the District in cost saving measures in the area of health insurance, the Association agrees that:

- A) Support Staff will endeavor to reduce prescription costs by mail order purchases where said prescription will require long-term usage of a medication. The District shall provide sources, current prices, and lists of available medications by mail order to the Support Staff.
- B) Where an employee plans to submit to elective surgery, the District shall have the right to require a second opinion, provided the District pays the cost.
- C) The District shall have the right to require that the plan administrator shall audit all hospital and physician's bills.
- D) The District may establish an employee education program for the purpose of making Support Staff aware of insurance benefits and costs. Said program may include an annual summary of charges incurred by each employee, but individual employee's names will not appear on any summary to be publicized in such a program.
- E) The District and Association agree to comply with all state and federal laws concerning generic drugs.
- F) The parties agree to participate with a preferred provider for health services for employees covered by this Agreement. Employees so covered, shall maintain the right to determine the health services provider of their choice without penalty.
- 1) The annual major medical deductibles shall be as follows:

Effective Date	Individual Coverage	Family Coverage
7/1/2010	\$ 50	\$150

- J) The payments of benefits as described in the District's medical benefits plan will be made as determined based on the submission of proof that a charge, fee or expense has been incurred. Payment of covered hospital inpatient charges will be made by a two-party check payable to the hospital and the covered person, or parent or guardian of the covered person if the covered person is a minor or mentally or physically totally disabled. The payment check will be sent to the individual payee to be endorsed and forwarded to the hospital. Payment of benefits to other service providers may be made directly to the service provider. However, any reimbursement by the plan for a charge, fee or expense paid by an individual will be disbursed to that individual who paid the charge, fee or expense.
- K) Right of Reimbursement and Assignment of Proceeds The term "third party" means a person or organization other than the covered person. No benefits shall be paid under any coverage of this plan with respect to any injury or sickness for which a third party may be liable or legally responsible. However, subject to the provisions of this section, the plan will pay such benefits provided that the covered person (or his or her legally authorized parent, guardian, or representative) shall comply with the following conditions:
1. Prior to payment of any such benefits under this plan, the covered person and the legal representative of the covered person shall agree, in writing, to provide the claims administrator and the fund administrator with written notice whenever a claim is commenced against and/or recovery is received from any third party (or insurer or surety thereof) for damages as a result of the injury or sickness;
 2. Prior to the payment of any such benefits under this plan, the covered person and the legal representative of the covered person shall agree, in writing, to reimburse the plan in accordance with this section for any benefits paid by the plan on account of such injury or sickness; and
 3. Prior to payment of any such benefits under this plan, the covered person and the legal representative of the covered person shall provide in writing, an assignment of proceeds in favor of the plan in the amount of any benefits paid by the plan on account of such injury or sickness; such assignment to be valid against any judgment, settlement, or recovery in any manner received from such third party or such third party's insurer or surety.

The conditions herein set forth shall not apply to any benefits payable under Medicare supplementary coverage, nor to any amount received by the covered person under any other insurance policy or certificate issued to the covered person or to any dependent of an employee covered hereunder.

The amounts to be recovered by the plan pursuant to the provisions thereof shall not be reduced by any attorney's fees, court costs or other disbursements.

- L) The Binghamton City School District shall provide a flexible cafeteria plan pursuant to Internal Revenue Code Section 125 which shall be used for purposes of the payment by employees of health care premium equivalents, uncovered health care expenses, uncovered dental expenses, child care expenses, optical care and other uncovered medical and/or health expenses as permitted by regulations of the Internal Revenue Service. It is understood that this flexible spending account/cafeteria plan shall allow the employee to pay these expenses with pre-tax dollars. The initial startup cost of this plan shall be paid by the Binghamton City School District. Any monthly expense or administration fee for belonging to or participating in said plan shall be paid for by the employee by payroll deduction. This plan shall only be offered so long as it is permitted by the Internal Revenue Code and Internal Revenue Service Regulations.
- M) There shall be established a health benefits committee consisting of members appointed by the association, and members appointed by other bargaining units and by the district. The goal of this committee shall be to establish and maintain a managed health care benefit system. The charge of this committee is to investigate ways to contain and reduce health care costs.
- N) Inpatient admissions for Alcoholism and Substance Abuse shall be limited to two (2) continuous periods of confinement as a lifetime maximum.
- O) Inpatient Mental Illness and Nervous Disorder Care shall be covered under Major Medical.
- P) There shall be a lifetime infertility benefit limit of \$10,000.00 per covered participant.
- Q) For equipment or supplies costing \$100.00 or more, benefits must be precertified by the Plan's Case Management Agency in order to be covered at 80%. If not certified, coverage would be limited to 50%. Charges would continue to be subject to the Plan's Major Medical deductible.

R) Effective July 1, 1997, physician services provided by a non-participating provider shall be covered under the Major Medical portion of the plan, subject to the deductible and co-payment.

S) In order for a covered participant to obtain reimbursement or payment for charges for services and supplies that are medically necessary and are usual, customary and reasonable, and are covered charges eligible for benefits under this plan, a pre-admission certification and pre-service authorization must be obtained from the plan's case management consultant. Payment of covered hospital expenses incurred by covered persons who fail to obtain pre-admission certification will be reduced by \$100.00 of the amount of the covered hospital expense that the plan would otherwise pay.

Section 4: For all persons employed by the Binghamton City School District, within this Unit, hired prior to March 5, 1985, a non-contributory dental plan shall continue to be provided by the School District for the employee and eligible dependents.

Any employee hired on or after March 5, 1985, shall be required to contribute twelve percent (12%) of the annual premium or equivalent for the individual and/or family coverage provided by this plan.

Section 5:

The Employer agrees to make a Non-elective Contribution for eligible unit members. Such contribution will be made to a 403 (b) program able to accept Employer contributions as defined in the Internal Revenue Code. This contribution will be processed within thirty (30) days of retirement.

No Cash Option —

No Employee may receive cash in lieu of or as an alternative to any of the Employer's Non-elective Contribution(s) except as described herein. (See paragraph 4.A.)

Contribution Limitations —

In any applicable year, the maximum Employer contribution shall not cause an Employee's 403(b) account to exceed the applicable contribution limit under Section 415(c)(1) of the Code, as adjusted for cost-of-living increases. For Employer Non-elective Contributions made post-employment to former Employees' 403(b) account, the Contribution Limit shall be based on the Employee's compensation, as determined under Section 403(b)(3) of the Code and in any event, no Employee after the fifth taxable year following the taxable year in which that Employee terminated employment.

In the event that the calculation of the Employer Non-elective Contribution referenced in any of the preceding paragraphs exceed the applicable contribution limits, the excess amount shall be handled by the Employer as follows:

- A. For all members in the New York State Employees' Retirement System regardless of their membership date, the Employer shall first make an Employer Non-elective Contribution up to the Contribution Limit of the Internal Revenue Code and then pay any excess amount as compensation directly to the Employee. In no instance shall the Employee have any rights to, including the ability to receive, any excess amount as compensation unless and until the Contribution Limit of the Internal Revenue Code are fully met through payment of the Employer's Non-elective Contribution; and
- B. For all members in the New York State Employees' Retirement System regardless of their membership date, the Employer shall first make an Employer Non-elective Contribution up to the Contribution Limit of the Internal Revenue Code. To the extent that the Employer Non-elective Contribution exceeds the Contribution Limit, such excess shall be reallocated to the Employee the following year as an Employer Non-elective Contribution (which contribution shall not exceed the maximum amount permitted under the Code), and in January of the following year for up to four (4) years after the year of the Employee's employment severance, until such time as the Employer Non-elective Contribution is fully deposited into the Employee's 403 (b) amount. In no case shall the Employer Non-elective Contribution exceed the Contribution Limit of the Internal Revenue Code.

403 (b) Accounts —

Employees receiving a contribution according to this Article shall be required to select a 403 (b) account designated to accept Employer Non-elective Contributions. Employer contributions shall be deposited into the 403(b)account selected by the Employee.

ARTICLE 10 - LABOR|MANAGEMENT COMMITTEE

Section 1.. In order to promote harmonious and cooperative relations between District administrators, supervisors, teachers, and support staff, the District recognizes the right of Aides and Monitors represented by the Association to request monthly meetings with an administration representative provided, however, that at least three (3) days written notice is forwarded to him/her. In the event of an emergency, this provision may be waived, at the discretion of the administration representative.

Section 2: The need for training for aides and monitors is recognized. A training fund of \$3,000 per year will be established.

The Committee will be composed of an equal number of CSEA representatives and representatives of the Binghamton City School District. The number of representatives will be established by the Committee. This Committee will recommend to the Superintendent of Schools areas in which training should be given and administer the fund in accordance with the District's accounting procedures. These funds shall not rollover from year to year; and, if unused, will revert to the District's general fund.

Section 3: Tuition Reimbursement

The District shall establish a Tuition Reimbursement Fund of up to seven thousand five hundred dollars (\$7,500) each year for the purpose of reimbursing the tuition paid by teacher aides and monitors for college credit courses completed by the same teacher aides and monitors. The maximum amount reimbursed shall be fifty dollars (\$50) per approved and earned college credit hour. The maximum amount reimbursed annually to teacher aides and monitors depends on the total amount of the college credit hours completed each year. The maximum amount paid to the teacher aides and monitors will be determined by the total number of college credit hours completed by the total bargaining unit.

College courses must be in teacher preparation courses and/or courses relevant to the teacher aide and monitor jobs. All courses to be considered for reimbursement shall have prior approval of the Superintendent of Schools or his/her designee.

Forms, timelines and procedures for implementing the Tuition Reimbursement Fund shall be mutually developed and distributed to all teacher aides and monitors by the Parties.

Section 4: Union Business

The President or another CSEA official designated by the President and one delegate shall be given four (4) days off a year with pay to attend meetings or conventions of the Civil Service Employees Association. In addition, thereto, each is allotted a

maximum of four (4) additional days off with pay in the event of special meetings. Notice of intention to attend meetings shall be presented in advance for approval by the Board of Education. Advance notice of intention to attend meetings or conventions will include a description of the purpose of the meetings or conventions.

ARTICLE 11 - GRIEVANCES

Section 1:

a. Definition

- (1) Employer - Board of Education, Binghamton City School District, City of Binghamton, New York.
- (2) Employee - any person covered by this collective bargaining agreement.
- (3) Employee's Representative — any person selected by an employee to represent him/her in formal grievance procedure.
- (4) Grievance — complaint by an employee that there has been as to him or her violation or misinterpretation of this agreement or complaint by the Association that there has been a violation or misinterpretation of this agreement affecting a covered employee or employees.

b. Procedures

- (1) Informal — Stage I: The employee shall present his or her grievance to his or her immediate supervisor, having district-wide responsibility either directly or through the employee's representative. If the grievance is not resolved at Stage I within a period of fifteen (15) workdays after presentation informally, the employee may initiate action to implement Stage II.
- (2) Formal — Stage II: The employee may initiate Stage II by filing with the Superintendent of Schools within two school days after the lapse of the fifteen days for informal resolution a written statement of grievance. The statement shall contain a clear, concise statement of the alleged violation or misinterpretation, the section of the contract relied upon and the redress to which the employee believes he or she may be entitled. The Superintendent shall within three school days after the receipt of the formal grievance convene a formal hearing at which time evidence may be presented to the Superintendent or a hearing officer designated by the Superintendent. A decision shall be

rendered within three school days after the hearing. If the grievance is not resolved at Stage II, the employee may within three school days after a decision at Stage II initiate Stage III.

- (3) Formal Stage III: The employee shall present the grievance to the Board of Education by filing with the Clerk of the Board a written statement of initiation of Stage III to which shall be attached the statement of grievance presented at Stage II. The Board of Education shall within seven school days after receipt of the statement initiating Stage III convene a formal hearing at which time evidence may be presented to the Board or a member or members of the Board designated hearing officer. A written decision will be rendered within seven school days after the aforementioned hearing. The decision of the Board of Education shall be final and binding without recourse to arbitration.

c. Miscellaneous

- (1) No grievance shall be entertained pursuant to the aforesaid provisions unless the grievance is presented at Stage I within 30 calendar days after the occurrence of the alleged violation or misinterpretation.

ARTICLE 12 - EMPLOYMENT SECURITY

Section 1 : All employees in the non-competitive or labor class shall be afforded the full protection of Section 75 of the State Civil Service Law as it relates to suspension, demotion, discharge or formal reprimand, after five (5) years of continuous service measured from the date of last entry into District service.

ARTICLE 13 - Effective Date

This Agreement shall become effective July 1, 2021 and shall terminate at the close of business on June 30, 2025.

THE CITY SCHOOL DISTRICT OF
THE
CITY OF BINGHAMTON, NEW YORK

DISTRICT NEGOTIATION TEAM

Eric Wilson
Dawne Anna-Adams

CSEA NEGOTIATION TEAM

Nicole Strawn
Vicki McMurray
Tammy Schyndler
Tina Zdimal

THE CIVIL SERVICE EMPLOYEES
ASSOCIATION, NC. LOCAL 1000,
AMERICAN FEDERATION OF STATE
COUNTY AND MUNICIPAL

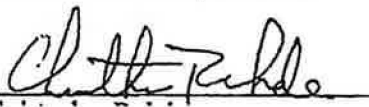
Tonia Thompson
By 
Superintendent of Schools

EMPLOYEES, AFL-CIO
BROOME
COUNTY EDUCATIONAL LOCAL 866

UNIT 6157-02

By Tina Zdimal
CSEA Unit President

Civil Service Employees Association, Inc.
Local 1000 AFSCME, AFL-CIO

By 
Christopher Rohde
Labor Relations Specialist



Comparison of benefits for Binghamton City Schools

5/3/2013

Type of care/plan features	Excellus BluePPO II		Classic Blue Traditional
	In-Network	Out Of Network	Coverage
Plan features - Primary Care Physician (PCP) - Referrals - Out of network benefits - Out of area benefits - Student/Dependent coverage - Domestic partner - Coverage Period	- Not required - Not required - Covered - Coverage provided worldwide through the BlueCard program. - Qualified dependents and students are covered to age 26. - Not covered - January 1st - December 31st		- No copay, office visit covered subject to deductible and coinsurance - Not required - Covered - Coverage provided worldwide through the BlueCard program. - Qualified dependents and students are covered to age 26. - Not covered
Plan cost-sharing highlights - Office visit copay (Primary Care Physician) - Office visit copay (Specialist) - Coinsurance - Deductible - Out of pocket maximum - Lifetime maximum	\$10 copay \$10 copay - In-network: None; Out-of-network: 20% - In-network: None Out of Network: \$250 Individual /\$750 family - In-network: None; Out of Network: \$1,000 individual /\$3,000 family - None		- No copay, office visit covered subject to deductible and coinsurance - No copay, office visit covered subject to deductible and coinsurance 20%, enhanced benefits only, unless noted - Varies Depending on Unit. Enhanced benefits only \$400 individual / \$1200 family, enhanced benefits only - None
Wellness Incentive Stay healthy with great programs and incentives!	Blue365 - Take advantage of exclusive discounts on health and wellness products and services, including fitness, exercise, nutrition, elective procedures and hearing aids.		Blue365 - Take advantage of exclusive discounts on health and wellness products and services, including fitness, exercise, nutrition, elective procedures and hearing aids.
Preventive Health Care Services - Well child visits - Adult routine physical exams - Adult immunizations	- Covered in full - Covered in full for 1 exam per year according to national guidelines - Covered in full		- Covered in full - Covered in full for 1 exam per year - Covered in full



Comparison of benefits for Binghamton City Schools

5/3/2013

Type of care/plan features	Excellus BluePPO II		Classic Blue Traditional
	In-Network	Out Of Network	Coverage
- Mammography - Pap smear - Routine GYN exam - Prostate cancer screening - Routine vision - Colonoscopy	- Covered in full - Covered in full - Covered in full \$10 copay \$10 copay for one routine exam per year - Preventive and diagnostic covered according to the surgical benefit	- Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible for one routine exam per year - Covered at 80%, subject to the deductible	- Covered in full - Covered in full - Covered in full - Covered in full - Not covered - Covered in full
Physician Office Services			
- Diagnostic office visits - Diagnostic x-rays - Diagnostic laboratory and pathology - Allergy tests - Allergy injections - Chemotherapy - Radiation therapy	\$10 copay per visit \$10 copay. Precertification applies for MRI, PET and CAT scans. - Covered in full \$10 copay per visit - Covered in full - Covered in full - Covered in full	- Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible. Precertification applies to MRI, PET and CAT scans. - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible	- Subject to deductible and coinsurance - Covered in full - Covered in full - Subject to deductible and coinsurance - Subject to deductible and coinsurance - Covered in full - Covered in full
Maternity Services			
- Prenatal Care - Hospital care for mom (including delivery) - Newborn nursery care	- Covered in full - Facility: Subject to \$250 copay per admission Physician: Covered in full - Covered in full	- Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible	- Covered in full - Covered in full - Covered in full
Prescription Drug			
- Short-term and maintenance drugs - Short-term and maintenance drugs	\$5/\$15/\$30	Not covered	Tier 1 - \$3, Tier 2 - \$5 Tier 3 - \$20
Inpatient Hospital Benefits			
- Hospital benefits - Physician visits in the hospital	- Subject to \$250 copay per admission for unlimited days. Precertification applies. - Covered in full	- Covered at 80%, subject to the deductible. Precertification applies. - Covered at 80%, subject to the deductible	- Covered in full, Unlimited Days - Covered in full; day limits may apply



Comparison of benefits for Binghamton City Schools

5/3/2013

Type of care/plan features	Excellus BluePPO H		Classic Blue Traditional
	In-Network	Out Of Network	Coverage
Inpatient physical rehabilitation	Subject to \$250 copay per admission for up to 60 days per year. Precertification applies.	Covered at 80%, subject to the deductible for up to 60 days per year. Precertification applies.	Cost sharing is equal to inpatient Hospital Services, limited to 30 days per year. Subject to no deductible and coinsurance after basic benefits have exhausted for unlimited days
- Surgery - Anesthesia	- Covered in full - Covered in full	- Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible	- Covered in full - Covered in full
Emergency Care			
- Emergency room care - Freestanding urgent care center - Ambulance	\$50 copay per visit, unless admitted within 24 hours \$25 copay per visit \$10 copay	\$50 copay per visit, unless admitted within 24 hours - Covered at 80%, subject to the deductible \$10 copay	- Covered in full - Covered in full - Covered in full
Outpatient Hospital Benefits			
Diagnostic x-rays	\$10 copay per visit. Precertification applies for MRI, PET and CAT scans.	Covered at 80%, subject to the deductible. Precertification applies to MRI, PET and CAT scans	Covered in full
- Diagnostic laboratory and pathology - Surgical care - Chemotherapy - Radiation therapy	- Covered in full \$10 copay - Covered in full - Covered in full	- Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible - Covered at 80%, subject to the deductible	- Covered in full - Covered in full - Covered in full - Covered in full
Mental Health and Chemical Dependence			
- Inpatient mental health care - Outpatient mental health care	- Subject to \$250 copay per admission for unlimited days. Precertification applies. \$10 copay. Services can be provided in an outpatient facility or in a provider office.	- Covered at 80%, subject to the deductible. Precertification applies. - Covered at 80%, subject to the deductible. Services can be provided in an outpatient facility or in a provider office.	- Covered in full, unlimited days - Same as Office Visit Benefit
- Inpatient chemical dependence - Outpatient chemical dependence	- Subject to \$250 copay per admission for unlimited days. Precertification applies. \$10 copay per visit	- Covered at 80%, subject to the deductible. Precertification applies. - Covered at 80%, subject to the deductible	- Covered in full, unlimited days - Covered in full
Other Services			
Diabetic insulin and supplies	\$10 copay for up to a 30 day supply	Covered at 80%, subject to the deductible for up to a 30 day supply	Covered in full



Comparison of benefits for Binghamton City Schools

5/3/2013

type of care/plan features	Excellus BluePPO H		Classic Blue Traditional
	In-Network	Out Of Network	Coverage
• Skilled nursing facility • Home care • Hospice • Outpatient therapy • Durable medical equipment • External prosthetics • Chiropractic • Acupuncture • Dental • Hearing	• Subject to \$250 copay per admission for up to 120 days per year. Precertification applies. • Covered in full for unlimited visits. Precertification applies. • Covered in full for unlimited days • \$10 copay per visit for up to a combined total of 45 visits per year for physical, speech, occupational and respiratory therapy • Covered at 80%. Precertification applies. • Covered at 80% • \$10 copay per visit • Not covered • \$10 copay for accidental injury to sound, natural teeth and for care due to congenital disease or anomaly • Routine exams not covered	• Covered at 80%, subject to the deductible for up to 45 days per year. Precertification applies. • Covered at 80%, subject to a \$50 deductible for unlimited visits per year, Precertification applies. • Covered at 80%, subject to the deductible for unlimited visits per year • Covered at 80%, subject to the deductible for a combined total of 45 visits per year for physical, speech, occupational and respiratory therapy • Covered at 80%, subject to the deductible. Precertification applies. • Covered at 80%, subject to the deductible • Covered at 80%, subject to the deductible • Not covered • Covered at 80%, subject to the deductible for accidental injury to sound, natural teeth and for care due to congenital disease or anomaly • Routine exams not covered	• Covered in full for 100 days; Subject to no deductible and coinsurance after basic benefits have exhausted for unlimited days • Covered in full for up to 60 visits per year. Subject to deductible and coinsurance after basic benefits have exhausted for up to 325 visits per year • Covered in full for unlimited days • Subject to deductible and 20% coinsurance, unlimited visits • Subject to deductible and 20% coinsurance • Subject to deductible and 20% coinsurance • Subject to deductible and 20% coinsurance • Not covered • Not Covered • Not covered

Binghamton City School District
 Health and Dental Plan Costs- Employee Contributions
 Effective July 1, 2013

	Blue PPO Plan	Classic Blue Plan
Individual Plan		
Total Cost	\$7,686.96	\$8,214.72
Employee Cost		
3%	\$230.61	\$246.44
10%	\$768.70	\$821.47
12%	\$922.44	\$985.77
BTA	\$350.00	\$950.00
BASA	\$750.00	\$750.00
Family Plan		
Total Cost	\$20,187.48	\$21,182.16
Employee Cost		
3%	\$605.62	\$635.46
10%	\$2,018.75	\$2,118.22
12%	\$2,422.50	\$2,541.86
BTA	\$825.00	\$1,950.00
BASA	\$1,800.00	\$1,800.00
Dental Plan Contributions		
Individual Plan		Family Plan
Total cost	\$96.96	Total cost \$328.20
Employee Cost		Employee Cost
12%	\$11.64	12% \$39.38

rendered within three school days after the hearing. If the grievance is not resolved at Stage II, the employee may within three school days after a decision at Stage II initiate Stage III.

- (3) Formal Stage III: The employee shall present the grievance to the Board of Education by filing with the Clerk of the Board a written statement of initiation of Stage III to which shall be attached the statement of grievance presented at Stage II. The Board of Education shall within seven school days after receipt of the statement initiating Stage III convene a formal hearing at which time evidence may be presented to the Board or a member or members of the Board designated hearing officer. A written decision will be rendered within seven school days after the aforementioned hearing. The decision of the Board of Education shall be final and binding without recourse to arbitration.

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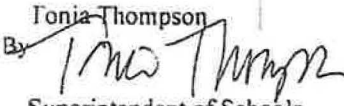
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